

Committee: Human Rights Council

Topic: Restoring International Human Rights Standards After the Pandemic: Displacement and the Morality of Survival in the Modern World

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Introduction

When the COVID Pandemic began, most people saw it as a health crisis, however, looking back now, it is clear that it was also a human rights crisis. Between the years 2020 and 2023, governments all over the world declared states of emergency, closed their borders and limited people's freedom of movement, often claiming that this was necessary for the survival of their population. While it is true that many of these measures did save lives, some of the measures went way farther than they needed to, and the people who ended up paying the price were often the ones who already had the least protection. Displaced people in particular were affected the most, as refugees were turned away at the borders, and migrant workers were left stranded in foreign countries without any sort of income or a way to get back home.

Even though the WHO officially ended the COVID 19 health emergency in May 2023, a lot of the decisions that were set during the pandemic did not disappear with it. Hence, it is now more important than ever for the Human Rights Council to restore international human rights standards and to make sure that when, and if a next global emergency happens, the rights of displaced people and vulnerable people are protected instead of being dismissed.

Key Words

Pandemic - an outbreak of an infectious disease that spreads across multiple countries or continents, affecting a large number of people

Public Health Emergency of International Concern (PHEIC) - the highest level of alert the WHO can declare under the international health regulations

State of emergency - a situation where a government temporarily gives itself extra powers,, in order to respond to a crisis, which often means that some peoples rights become limited

Derogation -the legal right of a state to temporarily suspend certain rights during a public emergency, as stated in article 4 of the international covenant on civil

Non-derogable rights - rights that can never be suspended, even in emergencies, such as the right to life and freedom from torture

Displacement - the forced movement of people from their homes

Vaccine nationalism - when countries prioritise securing vaccines for their own population, often by buying far more than they need, at the expense of poorer countries

Equity - The principle that everything should be distributed equally and fairly based on need, regardless of a person's wealth

Morality of survival - the ethical debate over what actions are justified when lives are at risk, for example whether individual rights can be limited to protect the majority, or whether some lives are prioritised over others

Sunset clause - a provision in a law that makes it automatically expire after a set date unless renewed, used to prevent emergency powers from becoming permanent

General Overview

Under international law, states are allowed to limit certain rights during a public emergency, but only if the measures are necessary, lawful, temporary and non discriminatory, as stated in both article 4 of the ICCPR and the Siracusa Principles. However, during COVID 19, it is seen that many governments went far beyond these limits. Some of them ruled by decree for months, while others postponed elections or restricted protests, and some even introduced apps that traced a large amount of personal information, most of the time without clear rules. This got to the point where in April of 2020, the UN Secretary General himself warned that the pandemic has turned into a human rights crisis. Throughout this, a clear divide formed, as some governments insisted that strict measures were necessary for the survival of the population while others argued that a crisis is exactly the moment when human rights should be protected.

Out of everyone that was affected, displaced people were arguably the most vulnerable at the time. According to the UNHCR, at the peak of COVID 19, around 168 countries had either fully

or partially closed their borders and around 90 of those did not make an exception for people seeking refuge. In the US, the title 42 order allowed nearly 3 million migrants to be refused at the border between the years 2020 and 2023, without their requests being heard at all. In addition, many migrant workers lost their jobs almost overnight and were left practically stranded with no way home. In overcrowded refugee camps, following social distancing rules was evidently close to impossible.

Further, the pandemic forced the world to face a much more uncomfortable question, which was whose survival comes first. In some countries, hospital guidelines were criticised for putting as much attention and priority to elderly and disabled people when the resources started to run out. Globally, wealthy countries bought vaccines first, and as a result, by May 2022, only 16% of people in low income countries had a single dose of the vaccine, compared to 80% in the higher income countries. On top of that, refugees and migrants were often left out completely with no vaccines whatsoever, or they were too afraid of being deported to even request any.

Since then, there has been some progress, although it is still not nearly enough. In May of 2025, the World Health Assembly adopted the WHO Pandemic Agreement which aimed to make vaccines and medicine more available in future pandemics, but it still cannot be signed until the negotiations are finished. In addition, the amendments to the International Health Regulations only came into play in September 2025. However, neither of these really focuses on human rights or displaced people, which is why the Human Rights Council still has an important role to play in making sure that the mistakes made in COVID 19 are not repeated again.

Major Parties Involved

Party 1 - World Health Organization (WHO) - leads the global health response, declared COVID-19 a PHEIC and a pandemic, and hosts negotiations on the Pandemic Agreement

Party 2 - OHCHR and the Human Rights Council - monitored emergency measures, issued guidance on human rights during COVID-19, and oversee states' human rights obligations

Party 3 - UNHCR and IOM - advocated for asylum access during border closures, supported refugees and stranded migrants, pushed for their inclusion in vaccination plans

Party 4 - COVAX (WHO, Gavi, CEPI, UNICEF) - the global initiative to distribute COVID-19 vaccines fairly to lower-income countries

Party 5 - High-income states - the United States, European Union members, the United Kingdom, Canada and Japan, secured the majority of early vaccine supplies and introduced strict border measures

Party 6 - Low- and middle-income states - many African, South Asian and Latin American countries that faced vaccine shortages, India and South Africa proposed a waiver of intellectual property rules on COVID-19 vaccines at the WTO in 2020

Party 7 - Major refugee-hosting states - such as Türkiye, Colombia, Uganda, Bangladesh and Pakistan, which had to protect large refugee populations with limited resources

Party 8 - Pharmaceutical companies - Pfizer-BioNTech, Moderna, AstraZeneca and others, central to debates on vaccine pricing, patents and fair distribution

Party 9 - NGOs and civil society - Amnesty International, Human Rights Watch, Médecins Sans Frontières and others, who documented rights violations and campaigned for vaccine equity

Timeline of Relevant Events

Year	Event
1951	The Refugee Convention establishes non-refoulement, which continues to apply during public health emergencies
1966	The ICCPR is adopted, Article 4 sets strict conditions for suspending rights during emergencies
1984	The Siracusa Principles set out when and how rights may be limited for reasons such as public health
2005	The International Health Regulations (IHR) are revised, requiring health measures to respect human dignity and human rights
Jan 2020	WHO declares COVID-19 a Public Health Emergency of International Concern
Mar 2020	WHO declares COVID-19 a pandemic, mass border closures and lockdowns begin, the US introduces Title 42 expulsions, India's nationwide lockdown triggers a mass exodus of migrant workers
Apr 2020	The UN Secretary-General warns the pandemic is becoming a human rights crisis, OHCHR issues guidance on emergency measures
Oct 2020	India and South Africa propose a temporary waiver of intellectual property rights on COVID-19 vaccines and treatments at the WTO
Feb 2021	The first COVAX vaccine deliveries arrive in lower-income countries
1951	The Refugee Convention establishes non-refoulement, which continues to apply during public health emergencies
1966	The ICCPR is adopted, Article 4 sets strict conditions for suspending rights during emergencies
1984	The Siracusa Principles set out when and how rights may be limited for reasons such as public health
May 2022	Only 16% of people in low-income countries have received a vaccine dose, compared with 80% in high-income countries
Jun 2022	The WTO agrees a limited waiver on COVID-19 vaccine patents

May 2023	WHO ends the COVID-19 PHEIC (5 May), Title 42 ends in the US (11 May) after nearly 3 million expulsions
Dec 2023	COVAX formally closes
May 2025	The World Health Assembly adopts the WHO Pandemic Agreement
Sep 2025	Amendments to the International Health Regulations enter into force
2026	Negotiations continue on the Pathogen Access and Benefit Sharing (PABS) annex needed before the Pandemic Agreement can open for signature

Relevant Documents

[International Covenant on Civil and Political Rights \(ICCPR\)](#), Article 4

Sets out the strict conditions under which states may suspend certain rights during a public emergency, and lists the rights that can never be suspended

[The Siracusa Principles](#) (UN Doc. E/CN.4/1985/4)

Explain how and when rights in the ICCPR may be limited, including for public health reasons, requiring measures to be necessary and proportionate

[COVID-19 and Human Rights: We Are All in This Together](#) (UN Secretary-General Policy Brief, April 2020)

Warns of the human rights risks of the pandemic response and calls for measures that protect the most vulnerable, including refugees and migrants

[Emergency Measures and COVID-19: Guidance](#) (OHCHR, April 2020)

Practical guidance for states on keeping emergency measures lawful, proportionate and time-limited

[Global Evaluation of UNHCR's COVID-19 Response](#)

Finds that the international response to COVID-19 fell short in upholding refugees' rights, and draws lessons for future crises

[WHO Pandemic Agreement](#) (adopted May 2025)

The first international agreement on pandemic prevention, preparedness and response, focused on fairer access to vaccines and medicines

[Amended International Health Regulations](#) (in force September 2025)

Updated legally binding rules on how states must respond to international health emergencies, including a new "pandemic emergency" alert level

Possible Solutions

Despite the many issues the pandemic revealed, there are also several possible solutions.

1. Firstly, reviewing the emergency measures introduced during the pandemic.

States could be encouraged to look back at the emergency laws they introduced during COVID 19, and remove the ones that are no longer needed. In addition, any future emergency laws could include sunset clauses so that emergency powers cannot quietly become permanent once the crisis is over.

2. Second, creating human rights guidelines for possible future health emergencies

The Council could create clear guidelines on how states can protect public health without violating the fundamental principles of international law. For example, instead of completely closing the borders, states would use testing and quarantine at the border which would protect public health while allowing people to seek safety.

3. Third, including displaced people in the planning for the pandemic.

Refugees, internally displaced people, and migrant workers should be included in the plans and vaccination campaigns, regardless of their legal status. Furthermore, people should be able to access healthcare without being afraid of deportation, since this fear was one of the main reasons many did not speak up.

4. Last, fair sharing of vaccines and medical resources.

The Council could promote principles for sharing vaccines and making decisions based on medical need rather than wealth, age, disability or nationality. In addition, it could support the completion of the Pandemic Agreement, so that it can finally be signed and used.

Works Cited

- "Amended International Health Regulations Enter into Force." *World Health Organization*, 19 September 2025, <https://www.who.int/news/item/19-09-2025-amended-international-health-regulations-enter-into-force>. Accessed 26 September 2026.
- "Asylum Seekers Are Being Unlawfully Shut Out During the Pandemic." *NPR*, 12 February 2021, <https://www.npr.org/2021/02/12/967432213/asylum-seekers-are-being-unlawfully-shut-out-during-the-pandemic>. Accessed 26 September 2026.
- "COVAX Calls for Urgent Action to Close Vaccine Equity Gap." *World Health Organization*, 20 May 2022, <https://www.who.int/news/item/20-05-2022-covax-calls-for-urgent-action-to-close-vaccine-equity-gap>. Accessed 26 September 2026.
- "COVID-19 and Human Rights: We Are All in This Together." *United Nations*, April 2020, https://www.un.org/sites/un2.un.org/files/un_policy_brief_on_human_rights_and_covid_23_april_2020.pdf. Accessed 26 September 2026.
- "Emergency Measures and COVID-19: Guidance." *OHCHR*, 27 April 2020, https://www.ohchr.org/sites/default/files/Documents/Events/EmergencyMeasures_COVID19.pdf. Accessed 26 September 2026.
- "Forced Displacement Passes 80 Million by Mid-2020 as COVID-19 Tests Refugee Protection Globally." *UNHCR*, 9 December 2020, <https://www.unhcr.org/us/news/news-releases/forced-displacement-passes-80-million-mid-2020-covid-19-tests-refugee-protection>. Accessed 26 September 2026.
- "Global Evaluation: International COVID-19 Response Fell Short in Upholding Refugee Rights." *UNHCR*, <https://www.unhcr.org/news/press-releases/global-evaluation-international-covid-19-response-fell-short-upholding-refugee>. Accessed 26 September 2026.
- "The Siracusa Principles on the Limitation and Derogation Provisions in the International Covenant on Civil and Political Rights." *UN Commission on Human Rights*, 1984, <https://docs.un.org/en/E/CN.4/1985/4>. Accessed 26 September 2026.
- "Title 42 Postmortem: U.S. Pandemic-Era Expulsions Policy Did Not Shut Down the Border." *Migration Policy Institute*, 2023, <https://www.migrationpolicy.org/article/title-42-autopsy>. Accessed 26 September 2026.
- "WHO Member States Continue Negotiations on the Pathogen Access and Benefit Sharing Annex." *World Health Organization*, 20 July 2026, <https://www.who.int/news/item/20-07-2026-who-member-states-continue-negotiations-on-the-pathogen-access-and-benefit-sharing-annex>. Accessed 26 September 2026.
- "World Health Assembly Adopts Historic Pandemic Agreement to Make the World More Equitable and Safer from Future Pandemics." *World Health Organization*, 20 May 2025, <https://www.who.int/news/item/20-05-2025-world-health-assembly-adopts-historic-pandemic>

c-agreement-to-make-the-world-more-equitable-and-safer-from-future-pandemics. Accessed
26 September 2026.